

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: September 8, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Motion to Be Relieved as Counsel</u> Counsel Phillip R. Geurts’ Motion to Be Relieved as Counsel for Plaintiff and Cross-Defendant Luke Mensink is DENIED without prejudice. Counsel Phillip R. Geurts remains and shall continue to act as counsel of record for Plaintiff and Cross-Defendant Luke Mensink. <u>Pending Motion</u> Counsel Phillip R. Geurts (Counsel) moves to be relieved as counsel for Plaintiff and Cross-Defendant Luke Mensink. <u>Standard to Be Relieved as Counsel</u> “The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council’s Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the
-----------------	---	---

		moving papers.” (Cal. Rules of Court, rule 3.1362(e), <i>italics original</i>.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address.” (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client’s failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client’s insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, “a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e).” (Rules Prof.
--	--	--

		Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in “undue prejudice to the client’s interests,” (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or “an unreasonable disruption of the orderly processes of justice,” (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney’s request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) <u>Prior Proceedings</u> At the prior hearing on this motion, on July 20, 2026, the court found that Counsel had failed to comply with the requirements of California Rules of Court rule 3.1362. (See ROA #84 at p. 3.) Specially, Counsel had not stated in his declaration that he had 1) confirmed within the last 30 days that the address is the client’s current address or 2) that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (See <i>ibid.</i>; see ROA #42, ¶ 3.) In addition, Counsel had not filed or served a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053). (See ROA #84 at p. 3.) The court continued the hearing on the motion and ordered that Counsel file and serve a Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that were completely and correctly filled out. (See <i>ibid.</i>) The court also ordered that Counsel give notice to his client of the court’s ruling. (See <i>ibid.</i>) <u>Continued Deficiencies in the Motion Papers</u> The record reveals that Counsel has not complied with the court’s July 20, 2026 order or the requirements of California Rules of Court rule 3.1362.
--	--	--

		For example, Counsel has not filed or served an amended declaration or a proposed order. In addition, there is no evidence that Counsel served a notice of ruling from the July 20, 2026 hearing upon his client. In its July 20, 2026, decision, the court stated that “[t]he court may deny the motion if Counsel fails to supplement the motion papers as required.” (ROA #84 at p. 3.) Accordingly, the court will deny the motion without prejudice. The court clerk shall give notice of this ruling.
2	Parker vs. Harris 30-2024-01375596	<u>Motion to Approve Settlement</u> The Joint Motion for Approval of Settlement Agreement and Dismissal of Derivative Claims is GRANTED. This entire action, including the Complaint and the Second Amended Cross-Complaint, is DISMISSED without prejudice. The court shall retain jurisdiction pursuant to Civil Procedure Code section 664.6. <u>Pending Motion</u> Plaintiff and Cross-Defendant Matthew Parker (Parker); Defendant and Cross-Complainant Nathan Harris (Harris); Nominal Defendant and Nominal Cross-Defendant Album Creative Studios, Inc. (Agency); and Cross-Defendants Album Surfboards, LLC (Album Surfboards); Kathryn Parker; Larissa Clark; S & S Intellectual Resources, LLC; Uncommon Senses, LLC; Michael Townsend; Surf & Sing, Inc. (Surf & Sing); and XO Coco, LLC jointly move for an order approving the Settlement, Forbearance, and Release Agreement. The parties also move for the court to find that the settlement is fair, reasonable, adequate, and in the best interests of Agency; to approve the dismissal of the derivative claims asserted on Agency’s behalf; to dismiss the action without prejudice; and

		to retain jurisdiction pursuant to Civil Procedure Code section 664.6. <u>Standard for Approval of Derivative Action Settlement</u> "California courts have found that shareholder derivative plaintiffs may be considered as trustees or guardians ad litem to the corporation's right of action." (<i>Gaillard v. Natomas Co.</i> (1985) 173 Cal.App.3d 410, 419, disapproved on other grounds, <i>Grosset v. Wenaas</i> (2008) 42 Cal.4th 1100, 1119, fn. 16.) Accordingly, "[s]uch plaintiffs have no power to settle or compromise the corporation's action absent court approval." (<i>Id.</i> at p. 419.) Rather, "[a] shareholder plaintiff in a derivative action must obtain court approval before settling and dismissing the corporation's cause of action." (<i>Norman v. Strateman</i> (2025) 112 Cal.App.5th 92, 102.) The process of obtaining court approval of derivative action settlements is similar to that in class actions. (<i>Ibid.</i>) In other words, "courts must ensure that derivative settlements are fair and reasonable to the corporation and its shareholders, and the settlements are not a product of fraud, overreaching, or collusion by the settling parties." (<i>Id.</i> at p. 102.) "In so doing, court approval serves to protect the interests of those who are not directly represented in the settlement negotiations." (<i>Id.</i> at p. 103.) At the same time, the trial court should give "[d]ue regard . . . to what is otherwise a private consensual agreement between the parties." (<i>Ibid.</i>, quoting <i>Dunk v. Ford Motor Co.</i> (1996) 48 Cal.App.4th 1794, 1801.) "[T]he trial court needs to operate under an initial presumption of fairness where the settlement is the result of arm's-length negotiation, the investigation and discovery are sufficient to permit counsel and the court to act intelligently, the counsel are experienced in similar litigation, and the percentage of objectors is small." (<i>Norman v. Strateman, supra</i>, 112 Cal.App.5th at p. 103.)
--	--	--

		“Ultimately, the [trial] court's determination is nothing more than “an amalgam of delicate balancing, gross approximations and rough justice.”” (<i>Ibid.</i>, quoting <i>Dunk v. Ford Motor Co.</i> (1996) 48 Cal.App.4th 1794, 1801.) <u>Terms of Settlement Agreement</u> The record shows that the parties vigorously litigated this action for nearly 2 ½ years, including engaging in significant discovery and motions practice. Then, in May of 2026, the parties participated in mediation before the Honorable Marc Marmaro (Ret.). (See Decl. of Nathan Harris in Supp. of Joint Mot. for Approval of Settlement Agreement and Dismissal of Derivative Claims (Harris Decl.), ¶ 3; Decl. of Matthew Parker in Supp. of Joint Mot. for Approval of Settlement Agreement and Dismissal of Derivative Claims (Parker Decl.), ¶ 3.) Although the parties did not settle the matter at mediation, they continued negotiations and reached a settlement on June 17, 2026. (See Harris Decl., ¶ 3; Parker Decl., ¶ 3.) The parties entered into the Settlement, Forbearance, and Release Agreement (Settlement Agreement), which included, among other things, the following terms: • Parker shall relinquish his entire ownership interest in Agency to Harris, thereby making Harris the 100% owner of Agency; • Harris shall transfer Agency’s ownership interest in Album Surfboards to Parker, thereby divesting Agency of its ownership interest in Album Surfboards; • Parker shall pay Harris the total sum of \$75,000, with said sum to be paid via sixty (60) equal monthly installments beginning on August 1, 2026; • Parker’s payment obligations shall be secured by a stipulation for entry of judgment for the total amount of \$75,000 less credit for any payments received;
--	--	---

		• Harris shall relinquish all ownership rights, if any, that he possesses in Surf & Sing; • Harris agrees to indemnify Parker for all demands, liability, losses, suits, claims, or actions arising out of Agency's PPP loans; • Parker agrees to indemnify Harris for all demands, liability, losses, suits, claims, or actions arising out of Album Surfboard's PPP and SBA loans; • The parties shall dismiss all claims asserted in the Complaint and Second Amended Cross-Complaint; • The parties shall execute full releases; and • The court shall retain jurisdiction to enforce the terms of the settlement pursuant to Civil Procedure Code section 664.6. (Harris Decl., ¶ 3, Exh. A; Parker Decl., ¶ 3, Exh. A.) The Settlement Agreement has been executed by the all of the parties in this action, including Harris and Parker, who represent 100% of the ownership interest in Agency, on whose behalf the derivative claims are asserted. (See <i>ibid.</i>; see also Harris Decl., ¶ 2; Parker Decl., ¶ 2.) The court has reviewed the Settlement Agreement and its terms, the declarations attached to the motion, and all pleadings and papers filed in this action, and finds that the settlement is fair and reasonable, and is not a product of fraud, overreaching, or collusion by the settling parties. Here, the settlement was a result of an arm's length negotiation, obtained through mediation and discussion, and that the parties were represented by competent and experienced counsel. In addition, there was sufficient investigation and discovery by the parties with respect to the
--	--	--

		merits of the competing claims to allow the parties to act in an intelligent and knowledgeable manner. Further, it does not appear that there are any objectors to the settlement. Therefore, the court will grant the motion. Defendant shall give notice of this ruling.
3	Tonkinson vs. 24 Hour Fitness USA, LLC 30-2024-01400352	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is no written tentative ruling on this matter at this time. The court will hear from the parties or their counsel. However, the court may give some guidance orally regarding its preliminary thoughts on the issues presented by the motion.